

KAVANAUGH, J., concurring in part

and that still “have discriminatory effects” offend the Equal Protection Clause).

Where a law otherwise is untethered to racial bias—and perhaps also where a legislature actually confronts a law’s tawdry past in reenacting it—the new law may well be free of discriminatory taint. That cannot be said of the laws at issue here. While the dissent points to the “legitimate” reasons for Louisiana’s reenactment, *post*, at 142, Louisiana’s perhaps only effort to contend with the law’s discriminatory purpose and effects came recently, when the law was repealed altogether.

Today, Louisiana’s and Oregon’s laws are fully—and rightly—relegated to the dustbin of history. And so, too, is *Apodaca*. While overruling precedent must be rare, this Court should not shy away from correcting its errors where the right to avoid imprisonment pursuant to unconstitutional procedures hangs in the balance.

JUSTICE KAVANAUGH, concurring in part.

In *Apodaca v. Oregon*, this Court held that state juries need not be unanimous in order to convict a criminal defendant. 406 U. S. 404 (1972). Two States, Louisiana and Oregon, have continued to use non-unanimous juries in criminal cases. Today, the Court overrules *Apodaca* and holds that state juries must be unanimous in order to convict a criminal defendant.

I agree with the Court that the time has come to overrule *Apodaca*. I therefore join the introduction and Parts I, II–A, III, and IV–B–1 of the Court’s persuasive and important opinion. I write separately to explain my view of how *stare decisis* applies to this case.

I

The legal doctrine of *stare decisis* derives from the Latin maxim “*stare decisis et non quieta movere*,” which means to stand by the thing decided and not disturb the calm. The doctrine reflects respect for the accumulated wisdom of